# CASE 2 — PROPERTY DISPUTE: ALLEGED UNAUTHORISED POSSESSION

### Synthetic case reference: P-TEST-002

### Parties

Claimant: Arun Menon, a fictional individual. Respondent: Dev Kumar, a fictional individual. The property is a fictional residential plot identified as Plot 27, Greenfield Layout, in the fictional locality of Lakeview Nagar.

### Facts stated by the claimant

1. Arun says he purchased Plot 27 on 14 June 2018 under a registered sale deed. A photocopy of a document described as the sale deed is included in his records, but the original and an up-to-date encumbrance search have not yet been reviewed.

2. Arun says he last inspected the vacant plot on 2 January 2026. On 15 February 2026, he found a temporary fence and building materials on part of the plot. He says Dev was present and claimed to have permission from “the previous owner.”

3. Arun denies giving Dev permission to enter, occupy, fence, or build on the land. No written licence, lease, sale agreement, court order, or permission document from Dev has been provided.

4. Arun sent a written request to remove the materials and leave the plot on 18 February 2026. A delivery receipt is available, but no written response from Dev is currently included.

5. Arun wants the alleged occupation stopped, the plot restored to its prior condition, and any other remedy available after the title, possession history, and applicable law are assessed.

### Documents and potential evidence currently identified

• Photocopy of a document described as a registered sale deed dated 14 June 2018.
• Property-tax receipts for 2022–2025; payment alone is not treated here as conclusive proof of title.
• Photographs of the fence and building materials, with no independently verified metadata.
• Written request dated 18 February 2026 and delivery receipt.
• Names of two neighbours who may have observed the plot in January and February 2026; no witness statements have been taken.

### Unresolved or missing facts

• Whether the claimant's title and property boundaries are confirmed by certified records and a survey.
• Whether Dev has any document or legal basis for entry or occupation.
• The exact date occupation began and whether any structure has been erected.
• Who was in possession immediately before the alleged entry and what acts of possession can be evidenced.
• Whether any other person claims ownership, an easement, tenancy, inheritance right, or other interest.
• The precise location and jurisdiction, and any applicable procedural or limitation issues.

### Questions this scenario is designed to test

1. Summarize the claimant's allegations without treating them as proven facts.
2. What evidence may help establish title, boundaries, and prior possession?
3. What facts should be verified before suggesting a legal remedy?
4. Distinguish evidence of ownership from evidence of occupation or possession.
5. What possible explanations or defences should be investigated before drawing conclusions?
6. Draft a neutral list of documents the claimant should gather for a lawyer.
7. What information is missing to assess the appropriate court, procedure, and limitation period?

# TESTING GUIDANCE

*These scenarios are intentionally incomplete so the application can be tested for uncertainty handling. A reliable system should distinguish documented facts, a party's allegations, inferences, and unknowns. It should not declare that a party has committed an offence or is legally entitled to a remedy based only on these summaries. Because these are dispute summaries rather than contracts, use them to test*